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# Calif. lawmaker wants a change to Peeps

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SACRAMENTO, Calif. - This Easter, Americans will devour more than 1 billion Peeps - those radiant marshmallow chicks whose appearance on store shelves each year is as much a herald of spring as azaleas at the Masters.

What makes the treats so vibrant is erythrosine, a chemical that shows up on ingredient labels as Red No. 3. It's one of several chemicals, along with titanium dioxide, used to color some of the most popular candy in the country - including Skittles and Hot Tamales.

Both chemicals have been linked to cancer. More than 30 years ago, U.S. regulators banned Red No. 3 from makeup. The U.S. still has not banned the chemical from food, to the dismay of some consumer safety groups.

Now, a state lawmaker wants to ban erythrosine and titanium dioxide in California, plus three other chemicals used in everyday favorites like tortillas and some store brand sodas.

The bill, scheduled for its first public hearing next week, has prompted headlines around the world declaring California wants to ban Skittles and other candy.

Assemblymember Jesse Gabriel, a Democrat who authored the bill, said he wants to ban the chemicals, not the candy. He said plenty of alternative ingredients are available, noting the chemicals are already banned in Europe and that companies still find a way to sell candy there.

"They still produce Skittles in other parts of the world. What they do is they take out these toxic ingredients, and they replace them with something else," Gabriel said. "What we really want is for these companies to make the same minor modifications to their recipes that they made in Europe and elsewhere."

The National Confectioners Association, the trade group that represents candy companies, says it's not that easy. Tastes vary across cultures, it said, meaning just because a candy is accepted by Europeans doesn't mean it will be received well in the United States. Plus, changing ingredients would be a hardship for regional candy makers who don't sell their products overseas, according to the trade group.

"There's a lot more here at play than a simple soundbite solution," said Christopher Gindlesperger, spokesperson for the association. "We need a comprehensive look at this to make sure there aren't unintended consequences for chocolate and candy companies."

In addition to erythrosine and titanium dioxide, the bill would ban potassium bromate and propylparaben, two chemicals used in baked goods, and brominated vegetable oil, which is used in some store brand sodas.

The U.S. has allowed dyes like erythrosine in food since 1907.

Decades later, researchers found rats exposed to lots of erythrosine over a long time developed thyroid cancer.

In 1990, based in part off of that research, the U.S. Food and Drug Administration banned erythrosine from cosmetics.

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